and will send a copy of the determination to the intermediary.

(3) The Board's determination concerning its authority or its lack of a determination is not subject to the Secretary's review under § 405.1875.

(g) *Effect of a Board decision.* (1) The Board's determination, issued on its own motion or at the request of a provider, that it lacks authority to decide a question of law, regulations or HCFA rulings is a final decision permitting a provider to seek judicial review with respect to the matter or matters in controversy contained in the determination, within 60 days of the date of the Board's determination.

(2) After the Board has determined that it does not have the authority to decide an issue, the provider will not be granted a hearing on the same issue.

(3) If the Board fails to issue an expedited review determination within 30 days of the date of receipt of a complete request (as determined under paragraph (h) of this section), the provider may, within 60 days from the end of that period, seek judicial review of the matters for which it requested the Board's determination.

(4) If the Board fails to make an expedited review determination within the required 30 days, it will begin regular hearing procedures as though it has the authority to decide the issue.

(5) If the provider seeks judicial review because the Board fails to make a determination as provided in paragraph (f)(1) of this section, it should notify the Board at the time it files for judicial review. The Board will not hold a hearing, even if one has been scheduled, on the matter or matters for which the provider is seeking judicial review.

(6) The Board's determination does not affect the right of the provider to a Board hearing for issues for which the provider did not request expedited review, or for which the Board determines it does have the authority to decide, or for which the Board did not make a determination and the provider did not request judicial review.

(h) *Date of receipt.* For purposes of this section, the date of receipt of the provider's request is the later of—

(1) The actual date of receipt by the Board of the information required under paragraph (c)(2) of this section, or of additional information requested by the Board under paragraph (c)(3) of this section, whichever the Board receives later; or

(2) The date indicated on the Board's written notification to the provider that the Board has accepted jurisdiction of the case.

(i) *Examples.* Below are examples showing when a provider may expect to receive an expedited review determination, in relation to various circumstances affecting its request for the determination.

(1) The provider requests a hearing and expedited review at or about the same time. If all information is complete, the Board could send notification that it has accepted jurisdiction of the case and the expedited review determination simultaneously.

(2) The provider requests both a hearing and an expedited review determination, and supplies complete information. The Board accepts jurisdiction but, for example, because of the complexity of the case, the Board makes its expedited review determination within 30 days after it has accepted jurisdiction.

(3) The provider requests both a hearing and an expedited review determination, but the request for a hearing does not contain enough information for the Board to determine jurisdiction. The Board would request more information to determine jurisdiction and would make its expedited review determination within 30 days after it has accepted jurisdiction.

(4) The provider requests both a hearing and an expedited review determination, but does not send enough information for the Board to make an expedited review determination. Assuming the Board accepts jurisdiction, the Board would request more information about the request for expedited review and make its determination within 30 days after it receives the additional information.

(5) The provider requests an expedited review determination after the Board has accepted jurisdiction. The Board would make its determination within 30 days after receipt of an appropriately documented request for an expedited review determination.

(Catalog of Federal Domestic Assistance Program No. 13.773, Medicare-Hospital Insurance; No. 13.774, Medicare-Supplementary Medicare Insurance)

Dated: April 30, 1982.

**Carolyne K. Davis,**

*Administrator, Health Care Financing Administration.*

Approved: June 30, 1982.

**Richard S. Schweiker,**

*Secretary.*

[FR Doc. 82-19861 Filed 7-21-82; 8:45 am]

BILLING CODE 4120-03-M

## DEPARTMENT OF THE INTERIOR

## Bureau of Land Management

## 43 CFR Public Land Order 6294

[CA 7523]

## California; Partial Revocation of Public Water Reserve No. 157

**AGENCY:** Bureau of Land Management, Interior.

**ACTION:** Public land order.

**SUMMARY:** This order partially revokes an Executive order affecting 40 acres in California withdrawn for public watering purposes. This action will restore 20 acres to full operation of the public land laws and all the lands to location for nonmetalliferous minerals. The balance of 20 acres will remain segregated from operation of the public land laws generally for the Monache-Walker Pass National Cooperative Land and Wildlife Management Area.

**EFFECTIVE DATE:** August 20, 1982.

**FOR FURTHER INFORMATION CONTACT:** Dianna Storey, California State Office, 916-484-4431.

**SUPPLEMENTARY INFORMATION:** By virtue of the authority vested in the Secretary of the Interior by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 6867 of October 5, 1934, which withdrew lands for Public Water Reserve No. 157, is hereby revoked insofar as it affects the following described lands in California:

Mount Diablo Meridian

T. 28 S., R. 35 E.,
Sec. 15, W½SE¼NW¼, W½NE¼SW¼.

The area described contains 40 acres in Kern County.

2. The W½SE¼NW¼ will remain segregated from operation of the public land laws generally, for the Monache-Walker Pass National Cooperative Land and Wildlife Management Area, by Public Land Order No. 2594 of January 22, 1962.

3. At 10 a.m. on August 20, 1982, the W½NE¼SW¼ shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on August 20, 1982, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

4. The lands will be open to location for nonmetalliferous minerals at 10 a.m. on August 20, 1982. They have been and

will continue to be open to location for metalliferous minerals and to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the State Director, Bureau of Land Management, Room E–2841, Federal Building, 2800 Cottage Way, Sacramento, California 95825.

**Garrey E. Carruthers,**

*Secretary of the Interior.*

July 15, 1982.

[FR Doc. 82–19801 Filed 7–21–82; 8:45 am]

BILLING CODE 4310–84–M

## 43 CFR Public Land Order 6295

[M–025412]

## Montana; Partial Revocation of Secretarial Order Dated January 31, 1936

**AGENCY:** Bureau of Land Management, Interior.

**ACTION:** Public land order.

**SUMMARY:** This order partially revokes a Secretarial order which withdrew 2.50 acres in Montana for use of the Department of Commerce in the maintenance of air navigation facilities. This action will restore the land to operation of the public land laws generally, including nonmetalliferous mineral location under the mining laws.

**EFFECTIVE DATE:** August 20, 1982.

**FOR FURTHER INFORMATION CONTACT:** Roland F. Lee, Montana State Office, 406–657–6291.

**SUPPLEMENTARY INFORMATION:** By virtue of the authority vested in the Secretary of the Interior, by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Secretarial Order dated January 31, 1936, which withdrew the following described public land use of the Department of Commerce in the maintenance of air navigation facilities, is hereby revoked as far as it applies to the land described below. Public Land Order No. 3980, dated April 11, 1966, transferred jurisdiction of the land back to the Department of the Interior.

**Principal Meridian**

T. 9 N., R. 8 W.,
Sec. 8, SE¼NE¼NW¼SW¼.

The area described contains 2.50 acres in Powell County.

2. At 8 a.m. on August 20, 1982, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, the above described land shall be open to operation of the public land laws generally. All valid applications received at or prior to 8 a.m. on August 20, 1982, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. At 8 a.m. on August 20, 1982, the land will be open to nonmetalliferous mineral location under the mining laws. The lands have been and continue to be open to metalliferous mineral location under the mining laws and to applications under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Chief, Branch of Lands and Minerals Operations, Bureau of Land Management, P.O. Box 30157, Billings, Montana 59107.

**Garrey E. Carruthers,**

*Secretary of the Interior.*

July 15, 1982.

[FR Doc. 82–19838 Filed 7–21–82; 8:45 am]

BILLING CODE 4310–84–M

## 43 CFR Public Land Orders; 6296

[C–8840]

## Colorado; Public Land Order No. 6141; Correction

**AGENCY:** Bureau of Land Management, Interior.

**ACTION:** Public land order.

**SUMMARY:** This order corrects an order entitled "Colorado: Powersite Restoration No. 678; Partial and Total Revocation of Powersite Reserve Nos. 27, 50, 254, and 495; Release of Section 24 Restriction on Certain Patented Lands." This order describes 120 acres of patented lands erroneously omitted from Public Land Order No. 6141.

**EFFECTIVE DATE:** July 22, 1982.

**FOR FURTHER INFORMATION CONTACT:** Richard D. Tate, Colorado State Office; 303–837–2535.

**SUPPLEMENTARY INFORMATION:** By virtue of the authority vested in the Secretary of the Interior by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

The description of lands in Public Land Order No. 6141 of February 5, 1982, in FR Doc. 82–4154 appearing on pages 6854–6855 in the issue of Wednesday, February 17, 1982, is hereby corrected to include the following described lands:

1. Page 6854, column 3, paragraph 3, Powersite Reserve No. 27, T. 51 N., R. 1 E. New Mexico Principal Meridian, the following line should be added "Section 22, NE¼SE¼, S½SE¼."

These patented lands are hereby relieved of the restrictions of Section 24 of the Federal Power Act of June 10, 1920, 16 U.S.C. 818.

Dated July 15, 1982.

**Garrey E. Carruthers,**

*Assistant Secretary of the Interior.*

[FR Doc. 82–19835 Filed 7–21–82; 8:45 am]

BILLING CODE 4310–84–M

## 43 CFR Public Land Order 6297

[I–9100]

## Idaho; Revocation of Public Land Order No. 5592

**AGENCY:** Bureau of Land Management, Interior.

**ACTION:** Public land order.

**SUMMARY:** This order revokes a withdrawal affecting 37.50 acres of public land in Idaho withdrawn by the Bureau of Land Management for use as a recreation site. This action involves record clearing only. The lands would not be restored to operation of the public land laws or the mining laws, since they remain closed by a classification made under the Recreation and Public Purposes Act.

**EFFECTIVE DATE:** July 22, 1982.

**FOR FURTHER INFORMATION CONTACT:** William E. Ireland, Idaho State Office; 208–334–1597.

**SUPPLEMENTARY INFORMATION:** By virtue of the authority vested in the Secretary of the Interior by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1914, it is ordered as follows:

1. Public Land Order No. 5592 of July 6, 1976, which withdrew the following described lands, is hereby revoked in its entirety:

**Boise Meridian, Idaho**

T. 50 N. R. 5 W.,
Sec. 4, lot 13.

The area described contains 37.50 acres in Kootenai County.

2. The lands described remain closed to all forms of appropriation under the public land laws, including the mining laws, because of a classification action made under the Recreation and Public Purposes Act of June 14, 1926. The lands have been and continue to be open to the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Chief, Branch of Lands and Minerals Operations, Bureau